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Case Number: 24NNCV05612 Hearing Date: September 15, 2026 Dept: T

Manuel George Gergiannakis vs. General Motors, LLC, et al.

Motion for Attorney's Fees and Costs

Moving Party: Plaintiff Manuel George Gergiannakis

Responding Party: Defendant General Motors, LLC

Tentative Ruling: Grant in part

BACKGROUND

On November 5, 2024, Plaintiff Manuel George Gergiannakis ("Plaintiff") filed a complaint against Defendant General Motors, LLC ("Defendant") and other named and unnamed defendants, alleging various causes of action under the Song-Beverly Warranty Act.

On December 3, 2025, Plaintiff filed a notice of settlement of the entire case.

On January 21, 2026, pursuant to the settlement and upon the filing of Plaintiff's request, the dismissal of the entire action was entered without prejudice and with the court retaining jurisdiction under Code of Civil Procedure section 644.6. Notice of this dismissal was not served.

Plaintiff now moves to recover reasonable attorneys' fees in the amount of \$47,846.25.

Defendant opposes, and Plaintiff replies. The Court also exercises its discretion to consider Defendant's late-filed opposition and supporting papers. (Cal. Rules of Court, rule 3.1300(d).)

MOVING PARTY POSITION

Plaintiff argues that his motion is timely brought as neither the Court nor any party served notice of the dismissal entered on January 21, 2026, and as the motion was filed and served within 180 days of this date.

Plaintiff argues that he is entitled to recover his reasonable attorneys' fees, costs, and expenses as the prevailing buyer in the action under Civil Code section 1794(d), and as authorized by the terms of the settlement agreement.

Plaintiff argues that lodestar method should be applied in assessing the reasonableness of his counsel's fees. In applying this method, Plaintiff's counsel's fees are reasonable based on the nature and complexity of the instant action, the skill and experience of his counsel that resulted in a significant settlement outcome, the exhibited prior findings of reasonableness as to his counsel's hourly rates, and the evidence supporting these rates as reasonable in light of those billed by other attorneys in this area and community of practice.

Plaintiff also argues that he is entitled to recover fees and costs incurred in preparing the instant fee motion. Plaintiff finally argues that the contingent nature of this case supports his requested fee enhancement through application of a 1.5 lodestar multiplier.

In sum, Plaintiff requests that the Court grant the motion and award \$47,846.25 in total attorneys' fees which are comprised of the following amounts: (1) \$31,897.50 in attorneys' fees; and (2) \$15,948.75 as a fee enhancement.

OPPOSITION

In its untimely opposition, Defendant contends that Plaintiffs' fee award should be limited to fees actually and reasonably incurred by his counsel. Defendant does not challenge the reasonableness of Plaintiff's counsel's declared hourly rates.

Defendant contends that Plaintiff's counsel's claimed billable hours of work in the instant action should, at minimum, be reduced by 46.1 total hours, as comprised of specified categories of time entries billed for each firm representing Plaintiff that Defendant argues were unreasonable, unnecessary, and/or involved non-legal work based on the record evidence.

With respect to Norman Taylor & Associates, Defendant seeks the following reduction in hours: (1) 6.3 hours of pre-representation work, amounting to \$3,316.50; (2) 0.7 hours of work attributed to a letter prepared and sent to Plaintiff by his counsel before the complaint was filed, amounting to \$451.50; (3) 3.2 hours of work attributed to preparation of the complaint, amounting to \$1,039.50; (4) 0.3 hours of work attributed to preparation of the Case Management Conference ("CMC") statement and the Notice of Posting Jury Fees, amounting to \$193.50; (5) 7.7 hours of work attributed to preparation of discovery requests, amounting to \$4,966.00; (6) 0.3 hours of work attributed to preparation of the Notice of Association, amounting to \$193.50; and (7) 7.9 hours of work attributed to clerical tasks, amounting to \$2,956.50.

With respect to Wirtz Law APC, Defendant seeks the following reduction in hours: (1) 1.8 hours of work attributed to review and update of a repair order summary and damages analysis, amounting to \$720.00; (2) 3.9 hours of work attributed to clerical tasks, amounting to \$1,305.00; (3) 2.1 hours of work based on excessive client communications, amounting to \$1,142.50; (4) 1.9 hours of work attributed to tasks performed in connection with settlement and vehicle surrender, amounting to \$695.00; (5) 3.5 hours of work attributed to preparation of unnecessary third-party subpoenas, amounting to \$1,770.00; and (6) 6.9 hours of work attributed to preparation of the instant fee motion, amounting to \$3,480.00.

Defendant finally contends that the case does not warrant the requested lodestar multiplier because Plaintiff had not satisfied the three elements required for seeking a fee enhancement. First, there was nothing novel, difficult, or superlative about this case or its outcome. Second, there is no evidence showing that the instant action precluded Plaintiff's counsel from taking on other clients. Third, as the Song-Beverly Warranty Act mandates an award of fees to a prevailing buyer, the contingent risk is a non-factor.

REPLY

Plaintiff responds that the work performed and hours billed by his counsel are reasonable and that Defendant's requested reductions are not supported by sufficient evidence. Plaintiff also responds that the contingent risk and delay in payment support the requested fee enhancement.

ANALYSIS

I. Legal Standard

Civil Code section 1794(d) provides that a buyer who prevails in an action under that section, "shall be allowed by the court to recover as a part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and the prosecution of such action."

II. Evidentiary Objections

The Court declines to rule on Plaintiff's evidentiary objections as they have no effect on the ruling herein.

III. Discussion

A. Entitlement to Attorneys' Fees

"[A] dismissal or judgment in favor of the party seeking fees is a predicate to a fee award." (*Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 650; see, also, *Berti v. Santa Barbara Beach Properties* (2006) 145 Cal.App.4th 70, 75 ["It is well settled that statutory costs and attorney fees are incident to the judgment."].) As a settlement agreement was entered by the parties, and as dismissal was entered pursuant to this settlement, the Court finds that Plaintiff is entitled to attorneys' fees and costs pursuant to Civil Code section 1794(d).

Therefore, Plaintiff's motion is proper.

B. Reasonableness of Fee Amount

Plaintiff requests \$31,897.50 in attorneys' fees. This requested fee amount is comprised of the following hours of work and corresponding fees attributed to each firm: (1) 33.4 total hours of work attributed to Norman Taylor & Associates ("NTA"), amounting to \$17,437.50 (Taylor Decl. ¶ 5, Exhibit 1 ("NTA Billing Records"); and (2) 37.6 total hours of work attributed to Wirtz Law APC ("WL"), amounting to \$14,460.00 (Wirz Decl. ¶ 2, Exh. 1 ("WL Billing Records").

"[A]bsent circumstances rendering the award unjust, an attorney fee award should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee. We explained that the purpose behind statutory fee authorizations—i.e., encouraging attorneys to act as private attorneys general and to vindicate important rights affecting the public interest—will often be frustrated, sometimes nullified, if awards are diluted or dissipated by lengthy, uncompensated proceedings to fix or defend a rightful fee claim." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133-34 [emphasis in original].) "The fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. . . . The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (*Id.* at p. 1134.)

Therefore, the Court will consider the reasonableness of the \$31,897.50 fee amount sought by Plaintiff through application of the “lodestar” method.

1. Reasonableness of Hourly Rate

In applying the lodestar method, the Court begins by determining the ‘reasonable hourly rate,’ i.e., the rate ‘prevailing in the community for similar work.’” (Marshall v. Webster (2020) 54 Cal.App.5th 275, 285 [quoting PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095].) Under the general rule, the “relevant ‘community’ is that where the court is located.” (Marshall, supra, 54 Cal.App.5th at p. 285 [quoting Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71].)

Here, Plaintiff’s counsel NTA and its support staff provided legal services in the instant action at the following rates: (1) attorney Norman F. Taylor, \$645.00 per hour; and (2) paralegals Nick McNaughton and Lusine Musat, \$300.00 per hour. (Taylor Decl. ¶¶ 11–12.) Plaintiff’s counsel WL and its support staff also provided legal service in this action at the following rates: (1) attorney Amy R. Rotman, \$600.00 per hour; (2) attorney Jessica R. Underwood, \$600.00 per hour; (3) attorney Kyle B. Sample, \$450.00 per hour; (4) managing paralegal Rebecca Evans, \$300.00 per hour; and (5) paralegals Dalia Zaki and Katelynn Cespedes, \$250.00 per hour. (Wirtz Decl. ¶¶ 17–22.) The Court notes that Defendant does not appear to challenge the reasonableness of these rates in opposing this motion.

Accordingly, based on the submitted declarations and exhibited evidence, the Court finds that Plaintiff sufficiently demonstrated that the hourly rates charged by his counsel are reasonable and commensurate with rates charged in the community of consumer and lemon law practice.

Thus, the Court finds these rates to be reasonable.

2. Reasonableness of Hours Expended

Padding “in the form of inefficient or duplicative efforts is not subject to compensation.” (Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association (2008) 163 Cal.App.4th 550, 556.) However, parties opposing motions for attorneys’ fees fail to establish an abuse of discretion where they merely contend that amounts of attorneys’ fees are excessive without providing an analysis or factual support. (Maughan v. Google Technology, Inc. (2006) 143 Cal.App.4th 1242, 1250; Avikian v. Wtc Fin. Corp. (2002) 98 Cal.App.4th 1108, 1119; see, also, Premier Medical, supra, 163 Cal.App.4th at p. 560 [emphasizing that opposing parties “submitted no evidence that the hours claimed by counsel were excessive,” and declining to “declare as a matter of law that the hours were unreasonable”]; see, e.g., Villanueva v. City of Colton (2008) 160 Cal.App.4th 1188, 1204 [opposing party “offered no evidence of any kind which might have warranted a reduced fee award.”].)

Here, Plaintiff initially seeks recovery for 71 total hours of work expended on legal services performed by NTA and WL in the instant action, as set forth in the submitted billing records. (See NTA Billing Records; WL Billing Records.)

In opposition, Defendant challenges the reasonableness of this work by examining and identifying particular categories of billed hours that Defendant contends were improperly sought or not actually or reasonably expended, including apparent instances of padding.

In examining each of the entries in the submitted billing records, and in considering this and other evidence in the record, the Court finds that the following reductions in Plaintiff’s stated hours of expended work are warranted due to their unreasonableness. (See NTA Billing Records; WL Billing Records.) As to NTA, the Court strikes or taxes from these records all billed time attributed to purely administrative or clerical tasks, including, but not limited to, filing and service of documents, calendaring, and updating the client file, amounting to a total reduction of \$1,860.00 based on 6.2 hours of work. (See NTA

Billing Records.) Next, the Court finds that the total billed hours of time expended on the preparation of propounded discovery are likewise unreasonable given the evidenced use of templates and the straightforward nature of the underlying lemon law action, thus warranting a total reduction of \$3,676.50 based on 5.7 hours of work. (Ibid.) As to WL, the Court likewise strikes all billed and anticipated time attributed to purely administrative or clerical tasks, including, but not limited to, filing and service of documents and separating of electronic files, amounting to a total reduction of \$1,052.50 based on 3.9 hours of work at varying rates. (See WL Billing Records.) In addition, the Court finds that the total billed and anticipated hours of time expended in connection with the instant fee motion and concurrent motion to tax costs, including, but not limited to, the preparation of the memorandum of costs, attorney audit of billing records, and preparation of the motion and reply papers, are unreasonable, thus warranting a total reduction of \$1,740.00 based on 2.9 hours of work.

The Court otherwise finds Plaintiff's counsel's declared hours of work were reasonably expended and shall only reduce the attorney's fees sought by Plaintiff in the total amounts of \$5,536.50 as to NTA and \$2,793.50 as to WL, which reflect the sums of the respective reductions set forth above. These reductions total to \$8,330.00.

Furthermore, the Court denies Plaintiff's request for a 1.50 lodestar multiplier. There is no indication that this case was complex or presented challenging legal issues, or that the negotiated settlement was an exceptional outcome produced by counsel's exceptional effort. Though Plaintiff argues that the contingent nature of the representation justifies a fee enhancement, the Court notes that the Song-Beverly Act provides a statutory guarantee that eliminates any uncertainty about whether costs will be awarded to the prevailing party. (See, e.g., *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1175. Moreover, any contingency risk factor is already accounted for in the hourly rates, which the Court has found to be reasonable. (See *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1333 ["Where, as here, the court determines that the lodestar itself constitutes a reasonable fee for the action at issue, no enhancement is warranted."].) Thus, the Court denies the fee enhancement of \$15,948.75 derived from this lodestar multiplier.

Therefore, the motion for attorney's fees is granted in the reduced amount of \$23,567.50.

RULING

Plaintiff Manuel George Gergiannakis's Motion for Attorneys' Fees is GRANTED IN PART in the reduced total amount of \$23,567.50.

Manuel George Gergiannakis vs. General Motors, LLC, et al.

Motion to Tax Costs

Moving Party: Defendant General Motors, LLC

Responding Party: Plaintiff Manuel George Gergiannakis

Tentative Ruling: Deny

BACKGROUND

On November 5, 2024, Plaintiff Manuel George Gergiannakis ("Plaintiff") filed a complaint against Defendant General Motors, LLC ("Defendant") and other named and unnamed defendants, alleging various causes of action under the Song-Beverly Warranty Act.

On December 3, 2025, Plaintiff filed a notice of settlement of the entire case.

On January 21, 2026, pursuant to the settlement and upon the filing of Plaintiff's request, the dismissal of the entire action was entered without prejudice and with the court retaining jurisdiction under Code of Civil Procedure section 644.6. Notice of this dismissal was not served.

On May 27, 2026, Plaintiff timely served and filed verified memoranda of costs for his counsel, as comprised of the law firms of Norman Taylor & Associates ("NTA") and Wirtz Law APC ("WL"). NTA claims \$1,851.60 in total costs per its memorandum. WL claims \$864.93 in total costs per its memorandum.

Defendant now moves to tax or strike those costs.

Plaintiff opposes, and Defendant replies. The Court also exercises its discretion to consider Defendant's late-filed reply. (Cal. Rules of Court, rule 3.1300(d).)

MOVING PARTY POSITION

Defendant initially argues that the Court should deny the requested costs because Plaintiff failed to timely file and serve the memoranda of costs. Defendant argues that Plaintiff's counsel failed to present evidence supporting their claimed costs.

OPPOSITION

Plaintiff initially contends that the instant motion should be denied because Plaintiff failed to include a notice of motion. Plaintiff contends that his memoranda of costs were timely and that he is entitled to recover these costs. Plaintiff further contends that the verified memoranda of costs serve as prima facie evidence that the costs claimed therein were necessarily incurred and that Defendant failed to present any evidence showing that these costs are unreasonable.

REPLY

Defendant responds that the memoranda of costs were untimely because the clerk's entry of dismissal should constitute as notice under California Rule of Court, rule 3.1700(a)(1) and also reiterates that certain of these costs remain unreasonable or unnecessary, as evidenced by the now submitted invoices.

ANALYSIS

I. Legal Standard

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc. § 1032, subd. (b).) Under Code of Civil Procedure section 1033.5(c)(2), allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." Subdivision (c)(3) requires as follows: "Allowable costs shall be reasonable in amount." (Code Civ. Proc. § 1033.5, subd. (c)(3).) "Items not mentioned in [Section 1033.5] and items assessed upon application may be allowed or denied in the court's discretion." (Code Civ. Proc. § 1033.5, subd. (c)(4).)

"There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) "Only if the costs have been put in issue via a

motion to tax costs must supporting documentation be submitted.” (Id. [citing *Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308.) On a motion to tax costs, “[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774, citations omitted.)

“The court’s first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131, citations omitted.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224; *Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557.)

II. Discussion

Under California Rules of Court, rule 3.1700(a)(1), “[a] prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” Here, as Defendant provides no evidence that notice of entry of the dismissal was served, Plaintiff’s verified memoranda of costs were timely filed within 180 days after entry of judgment. Nor does Defendant provide any authority for its assertion that the entry of dismissal by the clerk should commence the 15-day period set forth in Rule 3.1700(a)(1), as this rule plainly establishes that service of notice of the entry of dismissal is the only event that commences the 15-day period set forth therein.

Furthermore, as a settlement agreement was entered by the parties, and as dismissal was entered pursuant to this settlement, the Court finds that Plaintiff is entitled to attorneys’ fees and costs pursuant to Civil Code section 1794(d), including the costs available under Code of Civil Procedure section 1033.5. (Civ. Code 1794, subd. (d); Code Civ. Proc. §§ 1032, 1033.5.)

In reviewing the memoranda of costs, the Court finds that Plaintiff’s claimed costs are expressly allowed under Section 1033.5 and appear to be proper charges on their face. “If items on a memorandum of costs appear to be proper charges on their face, those items are prima facie evidence that the costs, expenses, and services are proper and necessarily incurred. [Citation.] The burden then shifts to the objecting party to show them to be unnecessary or unreasonable. [Citation.]” (*Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 693; accord *Rojas v. HSBC Card Services Inc.* (2023) 93 Cal.App.5th 860, 896.) Accordingly, because Defendant’s costs appear proper on their face, Defendant’s verified memorandum of costs is prima facie evidence of their propriety. Accordingly, the burden shifts to Plaintiff to show these costs to be unnecessary or unreasonable. (See *Nelson*, supra, 72 Cal.App.4th at p. 131.) However, once a prima facie showing is made, “mere statements” in a motion to tax costs and attorney declaration “are insufficient to rebut the prima facie showing.” (*Rojas*, supra, 93 Cal.App.5th at p. 896 [quoting *Rappenecker v. Sea–Land Service, Inc.* (1979) 93 Cal.App.3d 256, 266].) Here, as Defendant relies solely on statements in its motion to tax costs and its counsel’s declaration to support its specified objections to Plaintiff’s claimed costs, the Court finds this insufficient to rebut Plaintiff’s prima facie showing and carry Defendant’s shifted burden of demonstrating that these claimed costs are unnecessary or unreasonable.

Therefore, the motion to tax costs is denied in its entirety.

RULING

Defendant General Motors, LLC’s Motion to Tax Costs is DENIED.